

Defendant THE PIGGY BACKER COMPANY, INC. shall be deemed to have admitted all propounded requests for admission set forth in Requests for Admission (Set Two). Plaintiff is additionally awarded \$510 as reasonable costs to be paid by Defendant in 30 days.

The court appreciates that while Plaintiff technically did not have a duty to meet and confer when it did not receive responses to RFA (Set Two) that counsel nevertheless did so. That is the type of practice all attorneys should adopt. Defendant's opposition promising some future performance at some unknown date does not render Plaintiff's motion moot.

Moving party to submit an order after hearing consistent with the requirements of California Rules of Court, rule 3.1312.

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**In the Matter of Default Servicing Corporation RE: 1601 Flamingo Dr. Fairfield, CA 94533**

**Case No. CU25-06417**

**Hearing re Surplus Funds**

TENTATIVE RULING:

Interested persons/claimant(s) to appear.

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**LARRY WILLIAMS III v. CITY OF SUISUN CITY AND JAMIR R. COLLINS**

**Case No. CU25-08849**

Defendants' Motions for Leave to File Amended Answers

TENTATIVE RULING

Defendants CITY OF SUISUN CITY ("SUISUN") and JAMIR R. COLLINS ("COLLINS") move for leave to file amended answers. Both parties declare that they have recently come to understand the legal significance of facts arising after the filing of the operative pleadings and thus now move to amend.

The trial court may, in its discretion, allow amendments to pleadings "in furtherance of justice." (Code Civ. Proc., § 473, subd. (a)(1).) Policy encourages liberality in allowing amendment. (See *Frost v. Witter* (1901) 132 Cal. 421, 424; *Cardenas v. Ellston* (1968) 259 Cal.App.2d 232; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Indeed, if the motion to amend is timely made and granting the motion will not prejudice the opposing party, it is error to refuse permission to amend where the refusal also results in a party being denied the right to assert a meritorious action or defense. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Defendants seek the same amendment: to add an affirmative defense of workers' compensation exclusivity. Defendants' counsel states that the facts supporting this defense were discovered in April 2026 when Plaintiff testified at deposition that at the time of the incident he was engaged in the sort of tasks he would perform while on the job for his employer SUI SUN even though he was at that time not formally working. (Declaration of Robert J. Gundert in Support of Motion to Amend Answer at ¶¶ 8, 12.) Defendants then realized the potential legal significance of this testimony in conjunction with legal precedent they contend supports application of workers' compensation exclusivity in such circumstances. The court expresses no opinion on the merits of Defendants' proposed affirmative defense at this time.

Trial has not been set in this action. The court finds that Plaintiff will not be prejudiced by granting leave to file an amended complaint. Defendants' motions for leave to file amended answers are granted.

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**TELLEZ v. A PLUS TREE, LLC, ET AL.**  
**Case No. CU26-00178**

### **Petition to Compel Arbitration**

#### TENTATIVE RULING:

Defendant A Plus Tree, LLC's petition to compel arbitration is GRANTED.

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement, such as fraud, waiver, or revocation, by a preponderance of the evidence. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm't, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

There is no dispute that Plaintiff executed an arbitration agreement requiring the parties to arbitrate "any and all disputes or claims between Employee and A-Plus that arise out of or relate to Employee's recruitment, application(s) for employment, offer and acceptance of employment, employment or separation from employment with A-Plus". (Decl. of Peterson, Exh. A.)

Plaintiff argues that the agreement should not be enforced because it is procedurally and substantively unconscionable.

There is some minor evidence of procedural unconscionability given that the agreement is a contract of adhesion and apparently the first document in the onboarding packet which appears to make the agreement a condition of employment. But, the agreement does advise the future employee to seek legal advice before signing. And, there is no